

Arun Kumar Shilpkar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 September 2017 · WRIT - C No. - 42073 of 2017 · **Writ disposed; billing dispute relegated to Executive Engineer under clause 6.5.**

HEADNOTE

A challenge to an electricity bill as an incorrect assessment of consumption is a billing dispute for the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed with liberty to place a certified copy before the Engineer, who was to consider the grievance—including deposits and alleged incorrect billing—and pass an order in accordance with law within three weeks; if the dispute is settled and dues paid, a consequential order on continuance of the connection may follow.

FACTUAL SUMMARY

Arun Kumar Shilpkar petitioned the Allahabad High Court against a bill dated 21 August 2017, alleging an incorrect assessment of his electricity consumption. A supplementary affidavit stated that no recovery or other proceedings had been initiated. After a listing on 11 September 2017, a Division Bench heard the matter on 13 September 2017. The Court treated the claim as a billing dispute for the Executive Engineer (respondent no. 4) under the Supply Code and disposed of the writ with directions to consider the grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-executive-engineer

HOLDING

A writ alleging that an electricity bill is an incorrect assessment of consumption is essentially a billing dispute for the Executive Engineer under clause 6.5. The petition was disposed with liberty to file a certified copy before the Engineer, who was directed to consider the grievance, any deposits, and any indication of incorrect billing, and to pass an appropriate order in accordance with law within three weeks; if the dispute is resolved and the consumer pays the settled dues, the Engineer may pass a consequential order on continuance of the connection. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 21 AUGUST 2017 AND ADJUSTMENT OF DEPOSITS

Left to the Executive Engineer under clause 6.5; the Court did not adjudicate consumption or dues. ¶ 4-6